

#	Case Name	Tentative
51.	Sanchez v. Perez 2022-01275016	Plaintiff Rigoberto Sanchez's motion to enforce the judgment is DENIED without prejudice. There is no proof of service on the motion. Further, plaintiff already has a money judgment. Plaintiff is encouraged to consult with the court's self-help desk concerning enforcement of money judgments, and proofs of service. The clerk shall give notice.
52.	Bernadette Jean McCann as trustee for The Bernadette Jean McCann under instrument dated November 18, 2019 v. Rubicon Builders & Development, Inc. 2025-01488820	Defendants Rubicon Builders & Development, Inc., Liat Natan, and Ofir Chanael's Motion to Compel Arbitration is GRANTED. (Code Civ. Proc. §1281.2.) Plaintiff Bernardette Jean McCain individually and as trustee for The Bernardette Jean McCann 2019 Trust for the Benefit of Bernardette Jean McCann under instrument dated November 18, 2019 shall submit her claims against Defendants Rubicon Builders & Development, Inc., Liat Natan, and Ofir Chanael to binding arbitration pursuant to the terms of the agreement to arbitrate contained in the Home Improvement Contract dated August 13, 2024 (see ROA 19, Ex. A) and subject to the modifications to the agreement provided in this Order. The remainder of this Action is STAYED upon the filing by plaintiff of proofs of service on Defendants Agape Civil Engineering, Inc. and Stephen Miller, RCE. Any stay is without prejudice to Defendants Agape Civil Engineering, Inc. and Stephen Miller, RCE moving to compel Plaintiff to arbitrate her claims. Any stay is also subject to further order of this Court. A Status Conference RE Binding Arbitration is set for January 29, 2027 at 9:00 a.m. in Department C28. Five days before the status conference, the parties are ORDERED to file a joint status conference statement. The case management conference is VACATED. <u>General Legal Standard</u> A party seeking to compel arbitration must demonstrate the existence of a written agreement to arbitrate the controversy by preponderance of the evidence, and the party resisting arbitration bears the burden of proving any defense to enforcement. (Code Civ. Proc., § 1281.2; <i>Engalla v.</i>

#	Case Name	Tentative
		<i>Permanente Medical Group, Inc.</i> (1997) 15 Cal.4th 951, 972 (<i>Engalla</i>); see <i>Hyundai Amco America, Inc. v. S3H, Inc.</i> (2014) 232 Cal.App.4th 572, 577 [“[plaintiff’s] filing of a lawsuit rather than commencing arbitration proceedings as required by the agreement affirmatively establishes [plaintiff’s] refusal to arbitrate”].) The defendant bears the burden of proving the existence of an agreement to arbitrate the controversy. The “court must employ a three-step burden shifting process” to determine whether the defendant has met this burden. (<i>Garcia v. Stoneledge Furniture LLC</i> (2024) 102 Cal.App.5th 41, 51 (<i>Garcia</i>); <i>Ramirez v. Golden Queen Mining Co., LLC</i> (2024) 102 Cal.App.5th 821, 830-832 (<i>Ramirez</i>); <i>Iyere v. Wise Auto Group</i> (2023) 87 Cal.App.5th 747, 755 (<i>Iyere</i>).) At the first step, the defendant must present prima facie evidence of a written arbitration agreement. The defendant can meet its first-step burden by simply providing a copy of the alleged agreement, without following the normal procedures of document authentication. (<i>Garcia</i>, at p. 51; <i>Ramirez</i>, at pp. 830-831; <i>Iyere</i>, at p. 755.) If this initial burden is met, the burden shifts to the plaintiff to present evidence of a factual dispute as to the agreement’s existence. (<i>Garcia</i>, at pp. 51-52; <i>Ramirez</i>, at pp. 832-833; <i>Iyere</i>, at p. 755.) If the plaintiff meets that burden, the burden shifts back to the defendant to prove the existence of the arbitration agreement by preponderance of the evidence with admissible evidence. (<i>Garcia</i>, at pp. 51, 53; <i>Iyere</i>, at p. 755.) Moving Defendants have established the existence of an agreement to arbitrate between Plaintiff and Defendant Rubicon Builders & Development, Inc. (See ROA 19, Ex. A.) Specifically, the Arbitration Agreement provides as follows: “ARBITRATION OF DISPUTES: ANY CONTROVERSY OR CLAIM ARISING OUT OF OR RELATED TO THIS CONTRACT, OR THE BREACH THEREOF, SHALL BE SETTLED BY BINDING ARBITRATION BEFORE THE AMERICAN ARBITRATION ASSOCIATION IN ACCORDANCE WITH ITS CONSTRUCTION INDUSTRY ARBITRATION RULES, AND JUDGMENT UPON THE AWARD RENDERED BY THE ARBITRATOR(S) MAY BE ENTERED IN ANY COURT HAVING JURISDICTION THEREOF. DISCOVERY IN ANY ARBITRATION SHALL BE LIMITED TO WHAT IS ALLOWED BY THE APPLICABLE ARBITRATION RULES AND THE ARBITRATOR’S POWERS ARE EXPRESSLY LIMITED TO THE APPLIUCABLE RULES; WHERE THE RULES PROVIDE THAT DISCOVERY OR DEPOSITION MAY BE ALLOWED IN EXTRAORDINARY CASES, IN THE INTERESTS OF JUDICIAL

#	Case Name	Tentative
		ECONOMY, THE ARBITRATOR MAY NOT ORDER DISCOVERY BROADER THAN THAT ALLOWED IN A LIMITED CIVIL CASE UNDER CODE OF CIVIL PROCEDURE SECTION 94. ANY CLAIM FILED IN SMALL CLAIMS COURT SHALL NOT BE DEEMED TO BE A WAIVER OF THE RIGHT TO ARBITRATE, AND IF A COUNTER CLAIM IN EXCESS OF THE JURISDICTION OF THE SMALL CLAIMS COURT IS FILED IN THE MUNICIPAL OR SUPERIOR COURT, THEN THE PARTY FILING IN SMALL CLAIMS COURT MAY DEMAND ARBITRATION PURSUANT TO THIS PARAGRAPH. NOTICE: BY INITIALING IN THE SPACE BELOW YOU ARE AGREEING TO HAVE ANY DISPUTE ARISING OUT OF THE MATTERS INCLUDED IN THE "ARBITRATION OF DISPUTES" PROVISION DECIDED BY NEUTRAL ARBITRATION AS PROVIDED BY CALIFORNIA LAW AND YOU ARE GIVING UP ANY RIGHTS YOU MIGHT POSSESS TO HAVE THE DISPUTE LITIGATED IN A COURT OR JURY TRIAL. BY INITIALING IN THE SPACE BELOW YOU ARE GIVING UP JUDICIAL RIGHTS TO DISCOVERY AND APPEAL, UNLESS THOSE RIGHTS ARE SPECIFICALLY INCLUDED IN THE "ARBITRATION OF DISPUTES" PROVISION. IF YOU REFUSE TO SUBMIT TO ARBITRATION AFTER AGREEING TO THIS PROVISION, YOU MAY BE COMPELLED TO ARBITRATE UNDER THE AUTHORITY OF THE BUSINESS AND PROFESSIONS CODE OR OTHER APPLICABLE LAWS. YOUR AGREEMENT TO THIS ARBITRATION PROVISION IS VOLUNTARY." Thus, the burden shifts to Plaintiff to present evidence of a factual dispute as to the existence of the arbitration agreement. (<i>Garcia, supra</i>, 102 Cal.App.5th at pp. 51-52.) Plaintiff fails to meet this burden. Plaintiff does not deny that she entered into the contract containing the arbitration agreement, nor does she otherwise dispute its existence. As such the three-step burden shifting analysis stops here, and the court must find that defendant has met its burden to demonstrate the existence of the arbitration agreement. (<i>Ramirez, supra</i>, 102 Cal.App.5th at p. 837.) Moving Defendants argue the question of arbitrability is a question delegated to the arbitrator. "There are two prerequisites for a delegation clause to be effective. First, the language of the clause must be clear and unmistakable. [Citation.] Second, the delegation must not be revocable under state contract defenses such as fraud, duress, or unconscionability.' [Citations.] The 'clear and unmistakable' test reflects a 'heightened standard of proof' that reverses the

#	Case Name	Tentative
		typical presumption in favor of the arbitration of disputes.” (<i>Aanderud v. Superior Court</i> (2017) 13 Cal.App.5th 880, 892.) Here, the “Any controversy or claim arising out of or related to this Contract” language is not sufficient to constitute a clear and unmistakable intent to delegate questions of arbitrability to the arbitrator. (See, e.g., <i>Beco v. Fast Auto Loans, Inc.</i> (2022) 86 Cal.App.5th 292, 303 [“any such controversy or claim’ could very easily be read to mean a specific substantive dispute or claim, not the issue of who decides whether the entire agreement is enforceable or unconscionable”].) Thus, the Court, not the arbitrator, is to decide the threshold issue of arbitrability of the claims Moving Defendants seek to be arbitrated. Here, each Cause of Action alleged by Plaintiff against Moving Defendants arises out of or is related to the contract containing the arbitration agreement because each cause of action is premised upon allegations concerning the performance of the construction services contemplated by the contract. <u>Non-Signatory Standing to Enforce Arbitration Agreement</u> Plaintiff challenges Defendants Chanael and Natan’s standing to enforce the arbitration agreement as non-signatories. Moving Defendants have shown that Defendants Chanael and Natan may enforce the arbitration agreement as non-signatories. A nonsignatory defendant may “compel a signatory plaintiff to arbitrate where there is a connection between the claims alleged against the nonsignatory and its agency relationship with a signatory” defendant. (<i>Cohen v. TNP 2008 Participating Notes Program, LLC</i> (2019) 31 Cal.App.5th 840, 863.) “[A]gents of a signatory can compel the other signatory to arbitrate so long as (1) the wrongful acts of the agents for which they are sued relate to their behavior as agents or in their capacities as agents [citation] and (2) the claims against the agents arise out of or relate to the contract containing the arbitration clause [citation] (consistent with the language of the arbitration clause.” (<i>Amisil Holdings Ltd. v. Clarium Capital Mgmt. LLC</i> (N.D.Cal. 2007) 622 F.Supp.2d 825, 832; see also <i>Garcia v. Pexco, LLC</i> (2017) 11 Cal.App.5th 782, 788 [“The [agency] exception applies, and a defendant may enforce the arbitration agreement, ‘when a plaintiff alleges a defendant acted as an agent of a party to an arbitration agreement’ ”]; <i>Dryer v. Los Angeles Rams</i> (1985) 40 Cal.3d 406, 418 [nonsignatory alleged to be an agent of a signatory is entitled to arbitrate

#	Case Name	Tentative
		claims brought against it by another signatory].) Here, the allegations against Chanael and Natan involve their conduct within the scope of an agency relationship with Defendant Rubicon. (See, e.g. FAC ¶¶ 3-4, 8-9, 13, 16-17, 48-49, 58, 65, 68, and 102.) <u>Risk of Conflicting Judgments</u> Plaintiff argues that the motion should be denied pursuant to Code Civ. Proc. §1281.2, subd. (c) because Plaintiff alleges causes of action against non-signatory Defendants Stephen Miller and Agape Civil Engineering. Plaintiff reasons that permitting the claims against Moving Defendants to be separately litigated in arbitration presents a risk of conflicting judgments. However, even if the Court finds there is a risk of conflicting judgments if the arbitration of Plaintiff's claims against Moving Defendants is compelled, Code Civ. Proc. §1281.2, subd. (c) provides the court with discretion in how to minimize that risk. (See (<i>Rowe v. Exline</i> (2007) 153 Cal.App.4th 1276, 1283 [court's discretion].) Namely, Code Civ. Proc, §1281.2, subd. (d) provides in relevant part: "If the court determines that a party to the arbitration is also a party to litigation in a pending court action ... with a third party as set forth under subdivision (c), the court (1) may refuse to enforce the arbitration agreement and may order intervention or joinder of all parties in a single action ... (2) may order intervention or joinder as to all or only certain issues; (3) may order arbitration among the parties who have agreed to arbitration and stay the pending court action ... pending the outcome of the arbitration proceeding; or (4) may stay arbitration pending the outcome of the court action or special proceeding." Here, the Court finds that a stay of proceedings with respect to Plaintiff's claims against Defendants Miller and Agape pending the arbitration of claims against Moving Defendants and Moving Defendants' mechanics lien claims in the related action is the most expeditious route to proceed. Plaintiff has not made a persuasive argument to deny the motion on the ground of Code Civ. Proc. §1281.2, subd. (c). <u>Waiver</u> Plaintiff also argues that the motion should be denied because Moving Defendants have waived the right to arbitrate these claims. Plaintiff contends that Defendants have taken action inconsistent with the intent to arbitrate by (1) filing a lawsuit [the related case] seeking to enforce a mechanic's lien; and (2) propounding form interrogatories in this matter.

#	Case Name	Tentative
		Moving Defendants respond by arguing that the filing of the related case is not inconsistent with the intent to arbitrate because the Complaint in that matter contained an express allegation preserving the right to arbitrate and Moving Defendants promptly sought to compel arbitration of the arbitrable claims in that lawsuit after service of the summons and complaint. Code Civ. Proc. §1281.5 supports Moving Defendants' position. Code Civ. Proc. §1281.5 provides that "[a]ny person who proceeds to record and enforce a claim of lien by commencement of an action [to enforce a mechanic's lien] does not thereby waive any right of arbitration the person may have pursuant to a written agreement to arbitrate, if, in filing an action to enforce the claim of lien, the claimant ... [i]ncludes an allegation in the complaint that the claimant does not intend to waive any right of arbitration, and intends to move the court within 30 days after service of the summons and complaint, for an order to stay further proceedings in the action..." Plaintiff has not shown that Moving Defendants failed to comply with Code Civ. Proc. §1281.5, and such this is not a ground to find waiver. With respect to the argument that Moving Defendants have propounded discovery, Plaintiff fails to provide any evidence that Moving Defendants have propounded any affirmative discovery. Moreover, Moving Defendants contend that the only discovery they have served in this proceeding is objections to written discovery served by Plaintiff. In sum, Plaintiff fails to make a sufficient showing to establish waiver of Moving Defendants' right to invoke the arbitration agreement. <u>Unconscionability</u> Plaintiff argues that the Arbitration Agreement should not be enforced because it is an unconscionable contract of adhesion that impermissibly limits Plaintiff's right to take discovery. As the party resisting enforcement, Plaintiff bears the burden of establishing this defense. (<i>Engalla, supra</i>, 15 Cal.4th at p. 972.) Plaintiff has failed to meet this burden. Unconscionability " "refers to "absence of meaningful choice on the part of one of the parties together with contract terms which are unreasonably favorable to the other party." ' [Citation.] As that formulation implicitly recognizes, the doctrine of unconscionability has both a procedural and a substantive element, the former focusing on oppression or surprise due to

#	Case Name	Tentative
		unequal bargaining power, the latter on overly harsh or one-sided results." ' ' " (<i>Baltazar v. Forever 21, Inc.</i> (2016) 62 Cal.4th 1237, 1243 (<i>Baltazar</i>).) "Both procedural and substantive unconscionability must be present before an arbitration provision is rendered unenforceable on unconscionability grounds, but ' ' 'they need not be present in the same degree.' ' ' [Citation.] Courts invoke a sliding scale in which ' "the more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to come to the conclusion that the term is unenforceable, and vice versa." ' [Citation.]" (<i>De Leon v. Pinnacle Property Management Services, LLC</i> (2021) 72 Cal.App.5th 476, 485-486; <i>Baltazar, supra</i>, 62 Cal.4th at pp. 1243-1244.) <u>Procedural Unconscionability</u> "Procedural unconscionability 'addresses the circumstances of contract negotiation and formation, focusing on oppression or surprise due to unequal bargaining power.' [Citation.] This element is generally established by showing the agreement is a contract of adhesion, i.e., a 'standardized contract which, imposed and drafted by the party of superior bargaining strength, relegates to the subscribing party only the opportunity to adhere to the contract or reject it.' [Citation.] Adhesion contracts are subject to scrutiny because they are 'not the result of freedom or equality of bargaining.' [Citation.]" (<i>Ramirez v. Charter Communications, Inc.</i> (2024) 16 Cal.5th 478, 492-493.) Here, Plaintiff has presented no evidence that Plaintiff was coerced or compelled to hire these defendants to perform the work that is the subject of this dispute—that is, there is no evidence of unequal bargaining power. Assuming, without deciding, that Plaintiff has shown some procedural unconscionability related to the nature of the form contract, any such unconscionability is of a low degree. (See <i>Baltazar v. Forever 21, Inc.</i> (2016) 62 Cal.4th 1237, 1244 ["Ordinary contracts of adhesion, although they are indispensable facts of modern life that are generally enforced [citation], contain a degree of procedural unconscionability even without any notable surprises."]) <u>Substantive Unconscionability</u> "Substantive unconscionability looks beyond the circumstances of contract formation and considers 'the fairness of an agreement's actual terms' [citation], focusing on whether the contract ... create[s] unfair or one-sided results

#	Case Name	Tentative
		[citation]. Substantively unconscionable contractual clauses 'reallocate risks in an objectively unreasonable or unexpected manner.' [Citations.]" (<i>Ramirez v. Charter Communications, Inc., supra</i>, 16 Cal.5th at p. 493.) Unconscionability must be assessed on circumstances known at the time the agreement was made, as opposed to subsequent developments (e.g., a particular plaintiff's litigation needs in relation to her claim). (<i>Id.</i> at pp. 505-506.) Here, Plaintiff contends that the Arbitration Agreement is substantively unconscionable because it severely restricts the availability of discovery. Specifically, the Agreement provides: "DISCOVERY IN ANY ARBITRATION SHALL BE LIMITED TO WHAT IS ALLOWED BY THE APPLICABLE ARBITRATION RULES AND THE ARBITRATOR'S POWERS ARE EXPRESSLY LIMITED TO THE APPLICABLE RULES; WHERE THE RULES PROVIDE THAT DISCOVERY OR DEPOSITION MAY BE ALLOWED IN EXTRAORDINARY CASES, IN THE INTERESTS OF JUDICIAL ECONOMY, THE ARBITRATOR MAY NOT ORDER DISCOVERY BROADER THAN THAT ALLOWED IN A LIMITED CIVIL CASE UNDER CODE OF CIVIL PROCEDURE SECTION 94." The Court agrees that this provision is substantively unconscionable. Arbitration agreements that severely limit the opportunity to take meaningful discovery have been found to be unconscionable. (See, e.g., <i>Beco, supra</i>. 85 Cal.App.5th at 308-312; <i>Daugherty v. Roseville Heritage Partners</i> (2020) 47 Cal.App.5th 93, 104-107.) However, the Court has the discretion to sever an unconscionable portion of a contract and enforce the remainder of the contract where it finds (i) the unconscionable provision is collateral to the contract's main purpose; (2) the unconscionable effect can be cured by severing the provision; and (3) enforcement of the remaining agreement is in the interests of justice. (<i>Ramirez v. Charter Communications, Inc., supra</i>, 16 Cal.5th at 517.) Here, the challenged discovery provision can be severed to cure the substantive unconscionability without rewriting the underlying contract. Accordingly, the foregoing Order compelling Plaintiff to submit her claims to binding arbitration is modified to permit discovery consistent with Code Civ. Proc. §§ 1282, et seq. Moving Defendants shall provide notice of this ruling.

#	Case Name	Tentative
53.	Rubicon Builders & Development, Inc. v. McCann 2025-0150778	Plaintiff Rubicon Builders & Development, Inc.'s unopposed motion to compel arbitration and stay proceedings is GRANTED. (Code Civ. Proc. §§ 1281.2 and 1281.4.) In light of the Court's ruling on Rubicon's motion to compel arbitration in the related matter McCann v. Rubicon Builders & Development, Inc. (OCSC Case No. 30-2025-01488820), Plaintiff and Defendant in this matter are hereby ORDERED to submit the claims alleged here to binding arbitration consistent with the Construction Services Agreement attached to Plaintiff's motion as Exhibit A, as modified in the ruling compelling arbitration in the related case. The Court excepts from this order to arbitrate Plaintiff's claims concerning a mechanic's lien. As it relates to Plaintiff's claims concerning the mechanic's lien, those claims are STAYED pending the conclusion of the arbitration, or further order of this Court. A Status Conference RE Binding Arbitration is set for January 29, 2027 at 9:00 a.m. in Department C28. Five days before the status conference, the parties are ORDERED to file a joint status conference statement. The case management conference is VACATED. Plaintiff shall provide notice of this ruling.
54.	Cacak v. HB Healthcare Associates LLC 2025-01454745	Defendants HB Healthcare Associates LLC (HB Healthcare) and Sandpiper Senior Living LLC's (Sandpiper) (together, the Sea Cliff defendants) motion to compel arbitration is DENIED. (See Code Civ. Proc., § 1281.2.) <u>Subject arbitration agreements.</u> This motion has been brought pursuant to two separate arbitration agreements: (1) HB Healthcare's arbitration agreement with plaintiff Harold L. Cacak (plaintiff) dated 6/15/23, which the parties refer to as the "Sea Cliff SNF Agreement" (Apolinar Decl. at Ex. A); and (2) Sandpiper's arbitration agreement with plaintiff dated 8/1/23, which the parties refer to as the "Sea Cliff RCFE Agreement" (Clark Decl. at Ex. B). Although the Sea Cliff defendants have brought this motion together, each defendant seeks to compel arbitration pursuant to its own arbitration agreement with plaintiff. <u>The California Arbitration Act applies.</u> Defendants have brought this motion pursuant to both the Federal Arbitration Act (FAA) and the California Arbitration Act (CAA). (See Mtn.